

MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.

No. MahaRERA/VH/WARRANT/10/03/2023.

Date: 1st March 2023.

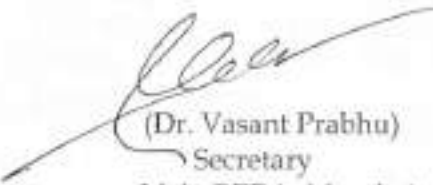
To,
The Collector, Thane
Collector Office, Court Naka,
Thane (West), Maharashtra 400601

Sub: Execution of the warrant under Section 40(1) of RERA in Complaint No. CC006000000192476 filed by Deepak Newaskar & Vaishali Newaskar Vs. Om Sai Infra & Om Sai Group in Project No. P51700012436.

Sir,

I am forwarding the recovery warrant under Section 40 (1) of RERA & for its execution. You are requested to look into the matter personally and get the warrant executed at the earliest. On realization of the amount, you are requested to inform us.

Yours faithfully,


(Dr. Vasant Prabhu)
Secretary
MahaRERA, Mumbai.

Encl: Warrant with
necessary papers.

*Received
10/03/23*

Details of the attachable assets to be required u/s 17/2 of Maharashtra Realization of Land Revenue Rules 1967. When Revenue Recovery Certificate is under the provision of Revenue Recovery Act 1890.

No. MahaRERA/VH/WARRANT/10/03/2023.

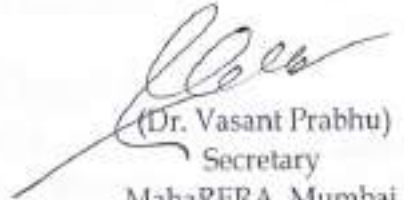
Date: 1st March 2023.

1.	Name and address of the firm: -	Deepak Newaskar & Vaishali Newaskar 001, B1 / A wing, Shiv Srushti CHS, Near new fish mkt, Kharigaon, Pakhadi, Thane - 400605 Mobile No.- +91- 8898899083 Email ID: - comkar7@gmail.com
2.	The sum to be recovered.	Interest for delayed possession of Rs. 7,08,534/- on the principal amount of Rs. 13,12,101/- calculated at the rate of 9% with a cost of Rs. 20,000/- along with further applicable interest till possession to the complainant.
3.	The provision of law under which the R.R.C. is sent to recover the sum as in arrears of Land Revenue.	Recovery warrant u/s 40(1) of Real Estate (Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeals, etc.) Rules, 2017.
4.	No. & Date of order under which amount is ordered to be recovered.	Complaint No.: CC006000000192476 Final Order dated: 23 rd September 2020
5.	Full name and address of the defaulter with name of the building, room no., road name, village name/town, taluka, Dist. Pin Code No.	Om Sai Infra & Om Sai Group Pan No: AAAAO3892M A/301, Glacia Apartment, Edulji Road, Tembhi Naka, Near Jain Mandir, Thane (M Corp.) - 400601.

		Details of contact person: Suresh Patel - Project Coordinator Mobile No.- +91- 8080099111 Email ID: - omsaigroup35@gmail.com
6.	Full details of the property of defaulter against which the process may be executed.	The Project known as "SAI KANISHK PHASE II" situated at Plot Bearing No / CTS no / Survey Number/Final Plot no. 5/5B, 5/9, at Thane - 400612. a) Housing project which is duly registered under the RERA Act bearing Registration No. P51700012436. b) Other apartments which are still not booked and not mortgaged to any Financial Institutions /Bank. Note: Land on which the project is being implemented, apartments that are already booked with other allottees and apartments that are mortgaged to Financial Institutions/Banks should not be attached so that the project can be completed.
7.	Immovable property: a) Name of the building House/Building. b) Room No. c) Name of the village/town d) Road name/gally name e) Sr. No./ II No. of the property f) Area of the property in square meters g) CTS No. of the property area of the property.	c) If by attaching the property mentioned in 6 above still arrears remain, then the properties/offices or any other movable or immovable properties of the defaulters be attached and auctioned. In order to ascertain unsold inventory and other properties of defaulters, you may adopt the procedure similar to which laid down under Order 21 Rule 41 CPC - namely to examine the judgement debtor to disclose his

		property and produce its property card, failing which he can be sent to jail for 3 months.
--	--	--

Mumbai
Date: 1st March 2023


(Dr. Vasant Prabhu)
Secretary
MahaRERA, Mumbai

MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.

No. MahaRERA/VH/WARRANT/10/03/2023.

Date: 1st March 2023.

Recovery Warrant U/s. 40(1) of Real Estate

(Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeal, etc.) Rules, 2017.

Complaint No.: CC006000000192476

Project No: P51700012436

Deepak Newaskar & Vaishali Newaskar — Complainants.

Versus

Om Sai Infra & Om Sai Group — Respondents.

To,
The Collector, Thane
Collector Office, Court Naka,
Thane (West), Maharashtra 400601

Whereas the above-named complainant has filed the above complaint No. CC006000000192476, and the Authority/Adjudicating Officer passed the enclosed order wherein the respondent was directed to pay simple interest at the rate of 9% on the consideration amounts paid on or before the date of possession and paid subsequently till handing over possession with the agreed amenities and occupancy certificate. The respondent was also directed to pay Rs. 20,000/- to each of the complainants.

And whereas the respondent has failed to comply with the order.

And whereas the amount ordered is recoverable from the respondents as an arrears of land revenue by virtue of Section 40(1) of Real Estate (Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeal, etc.) Rules, 2017.

You are hereby directed to recover the ordered amount from the respondent as the arrears of land revenue and pay it to the complainant and report the compliance.

The necessary information is:

1) Name of complainant with his address:

Omkar Dasharath Chavan

001, B1 / A wing, Shiv Srushti CHS, Near new fish mkt, Kharigaon, Pakhadi, Thane - 400605

Mobile No.- +91- 8898899083

Email ID: - comkar7@gmail.com

2) Name of respondents/promoters/directors/partners

Om Sai Infra & Om Sai Group

Pan No: AAAAO3892M

A/301, Glacia Apartment, Edulji Road, Tembhi Naka, Near Jain Mandir, Thane (M Corp.) - 400601.

Details of contact person:

Suresh Patel - Project Coordinator

Mobile No.- +91- 8080099111

Email ID: - omsaigroup35@gmail.com

3. Name of the project & its location:

The Project known as "SAI KANISHK PHASE II" situated at Plot Bearing No / CTS no / Survey Number / Final Plot no. 5/5B, 5/9, at Thane - 400612.

- a) Housing project which is duly registered under the RERA Act bearing Registration No. P51700012436.
- b) Other apartments which are still not booked and not mortgaged to any Financial Institutions/Bank.

Note: Land on which the project is being implemented, apartments that are already booked with other allottees and apartments that are mortgaged to Financial Institutions/ Banks should not be attached so that the project can be completed.

4) Particulars of immovable property and any other movable and immovable property:

- a) If by attaching the property mentioned in 3 above still arrears remain, then the properties/offices or any other movable or immovable properties of the defaulters be attached and auctioned. In order to ascertain unsold inventory and other properties of defaulters, you may adopt the procedure similar to which laid down under Order 21 Rule 41 CPC - namely to examine the judgement debtor to disclose his property and produce its property card, failing which he can be sent to jail for 3 months.

5) Amount to be refunded:

Interest for delayed possession of Rs. 7,08,534/- on the principal amount of Rs. 13,12,101/- calculated at the rate of 9% with a cost of Rs. 20,000/- along with further applicable interest till possession to the complainant.

6) Enclosures:

- i) Final order dated. 29th September 2020.
- ii) Order of Non-compliance dated 2nd August 2022
- iii) Interest calculation submitted by the complainant.

Mumbai
Date: 1st March 2023


(Dr. Vasant Prabhu)
Secretary
MahaRERA, Mumbai

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY
AUTHORITY, MUMBAI
NON-COMPLIANCE APPLICATION**

In

1. COMPLAINT NO: CC006000000192326

Aditi Alankar Thakur Complainant

Versus

Om Sai Infra & Om Sai Group Respondent

Along With

2. COMPLAINT NO: CC006000000192392

SANTOSH BAPU GURAV Complainant

Versus

Om Sai Infra & Om Sai Group Respondent

Along With

3. COMPLAINT NO: CC006000000192397

Jaisingh Dharmraj Complainant

Versus

Om Sai Infra & Om Sai Group Respondent

Along With

4. COMPLAINT NO: CC006000000192398

Vandana Vasant Gaikwad Complainant

Versus

Om Sai Infra & Om Sai Group Respondent

Along With

5. COMPLAINT NO: CC006000000192399

Seeta Pankaj Singh Complainant

Versus

Om Sai Infra & Om Sai Group Respondent

Along With

6. COMPLAINT NO: CC006000000192404

MUBEEN ABDUL HAMID WADKAR Complainant

Versus

Om Sai Infra & Om Sai Group

.... Respondent

Along With

7. COMPLAINT NO: CC006000000192410

kanhaiya chouhan

.... Complainant

Versus

Om Sai Infra & Om Sai Group

.... Respondent

Along With

8. COMPLAINT NO: CC006000000192411

Sanket Urkande

.... Complainant

Versus

Om Sai Infra & Om Sai Group

.... Respondent

Along With

9. COMPLAINT NO: CC006000000192413

DARSHAN LAXMAN BAMANE

.... Complainant

Versus

Om Sai Infra & Om Sai Group

.... Respondent

Along With

10. COMPLAINT NO: CC006000000192415

NISHA RAVINDRA DALVI

.... Complainant

Versus

Om Sai Infra & Om Sai Group

.... Respondent

Along With

11. COMPLAINT NO: CC006000000192417

Anant S Nagaonkar

.... Complainant

Versus

Om Sai Infra & Om Sai Group

.... Respondent

Along With

12. COMPLAINT NO: CC006000000192424

ABDUL WADOOD KHAN

.... Complainant

Versus

Om Sai Infra & Om Sai Group Respondent

Along With

13. COMPLAINT NO: CC006000000192443

Omkar Dasharath Chavan Complainant

Versus

Om Sai Infra & Om Sai Group Respondent

Along With

14. COMPLAINT NO: CC006000000192476

Deepak Newaskar & Vaishali Newaskar Complainant

Versus

Om Sai Infra & Om Sai Group Respondent

Along With

15. COMPLAINT NO: CC006000000192483

SACHIN LAXMAN PAWAR Complainant

Versus

Om Sai Infra & Om Sai Group Respondent

Along With

16. COMPLAINT NO: CC006000000192486

SUNIL SHIVAJI THORAT Complainant

Versus

Om Sai Infra & Om Sai Group Respondent

Along With

17. COMPLAINT NO: CC006000000192517

Vedang Pradeep Mahajan Complainant

Versus

Om Sai Infra & Om Sai Group Respondent

Along With

18. COMPLAINT NO: CC006000000192519

Kusumadevi Sureshchandra Gupta Complainant

Versus

Om Sai Infra & Om Sai Group Respondent

Along With

19. COMPLAINT NO: CC006000000192641

Rajkiran Vijay Chavan

.... Complainant

Versus

Om Sai Infra & Om Sai Group

.... Respondent

Along With

20. COMPLAINT NO: CC006000000192723

Manasi hanumant mahadeshwar

.... Complainant

Versus

Om Sai Infra & Om Sai Group

.... Respondent

Along With

21. COMPLAINT NO: CC006000000192766

SUPRIYA KASHIRAM WADEKAR

.... Complainant

Versus

Om Sai Infra & Om Sai Group

.... Respondent

Along With

22. COMPLAINT NO: CC006000000192887

Anil Atmaram Mirashi & Anita Anil Mirashi

.... Complainant

Versus

Om Sai Infra & Om Sai Group

.... Respondent

Along With

23. COMPLAINT NO: CC006000000193269

rutuja ulhas sindhe

.... Complainant

Versus

Om Sai Infra & Om Sai Group

.... Respondent

Along With

24. COMPLAINT NO: CC006000000193355

Brijesh Shukla

.... Complainant

Versus

Om Sai Infra & Om Sai Group

.... Respondent

Along With

25. COMPLAINT NO: CC006000000193360

Brijesh Shukla

.... Complainant

Versus

Om Sai Infra & Om Sai Group

.... Respondent

Along With

26. COMPLAINT NO: CC006000000193361

Apurva Devendra Singham

.... Complainant

Versus

Om Sai Infra & Om Sai Group

.... Respondent

Along With

27. COMPLAINT NO: CC006000000193378

SANGAM SHRIRANG GAIKWAD

.... Complainant

Versus

Om Sai Infra & Om Sai Group

.... Respondent

Along With

28. COMPLAINT NO: CC006000000193648

PANKAJ MANOHAR DHARGALKAR

.... Complainant

Versus

Om Sai Infra & Om Sai Group

.... Respondent

Along With

29. COMPLAINT NO: CC006000000193822

Ramesh R Bansode

.... Complainant

Versus

Om Sai Infra & Om Sai Group

.... Respondent

MahaRERA Registration No. P51700012436

Coram: Dr. Vasant Prabhu, Secretary, MahaRERA

Complainants at Sr. Nos. 1, 6, 8, 12, 19, 23 and 26 appeared in person.

Adv. Alok Velankar appeared for all the remaining complainants.

None appeared for the respondent.

Order

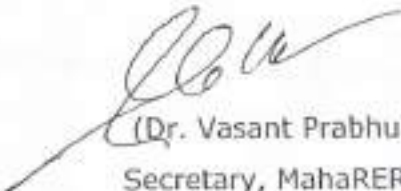
2nd August 2022

(Through Video Conferencing)

1. The complainants above named have filed the present 29 applications for non-compliance of the MahaRERA common Order issued on 29th September 2020 in the above 29 Complaints (hereinafter referred to as the said complaints), by the respondent.
2. In the said complaints filed by the complainants, the respondent was directed to pay simple interest at the rate of 9% on the consideration amounts paid on or before the date of possession and paid subsequently till handing over possession with the agreed amenities and occupancy certificate. The respondent was also directed to pay Rs. 20,000/- to each of the complainants.
3. On the said non-compliance applications, the hearing was held today through video conferencing as per the MahaRERA Circular no. 27/2020 and the MahaRERA Order No. 15/2020.
4. During the hearing, the complainants submitted that, the respondent has failed to comply with the common order issued by the MahaRERA authority dated 29th September 2020 in the above complaints, and has not paid the interest for the delayed possession to the complainants to date. The complainants further submitted that, even though the association of allottees has filed a complaint seeking revocation of the promoter registration, it is not decided yet. The complainants therefore sought issuance of recovery warrants against the respondent under section 40(1) of the RERA.
5. The respondent did not appear for the hearing even though the

notice of hearing was duly served upon it.

6. After hearing the arguments of the parties, it is pertinent to note that the respondent has failed to pay interest for the delay to the complainants as per the directions issued in the said common order dated 29th September 2020. Hence the complainants are entitled to seek issuance of warrants. Any further time granted to the respondent would lead to injustice to the complainants. With regards to the complaint filed by the association, the same is not yet decided and the project registration of the respondent is still active.
7. Therefore, the MahaRERA has no alternative but to proceed with action under section 40 (1) of RERA against the respondent. It is therefore, directed to issue individual recovery warrants under section 40(1) of RERA read along with rule 3 of the Maharashtra Real Estate (Regulation & development) (Recovery of Interest, Penalty, Compensation, Fine Payable, Forms of Complaint & Appeals etc.) rules, 2017, against the unsold inventory in the project of the respondent.
8. In view of the above, the 29 applications of non-compliance stand disposed of.


(Dr. Vasant Prabhu)
Secretary, MahaRERA